

Workplace Investigation Procedure

Scope

This procedure governs how People Operations investigates a reported breach of the Code of Conduct. It is restricted because it describes evidence handling and interview technique that would affect the integrity of an investigation if widely known.

Intake and acknowledgement

Acknowledge the report to the reporter within 3 business days. Record the report in the case system with a case number on the day it is received. Do not record the reporter name in any document shared outside the case team.

Deciding whether to investigate

A triage decision is made within 5 business days by an HR Business Partner and one member of Legal. A decision not to investigate must be recorded with reasons.

Interim measures

Where there is a risk of ongoing harm, consider changing reporting lines, moving one party to different work, or paid suspension. Suspension is a neutral act, is not a disciplinary sanction, and must be confirmed in writing within 24 hours.

Conducting interviews

Interview the reporter first, then witnesses, then the person the report concerns. Give the person concerned the substance of the allegation in writing at least 48 hours before their interview. Every interviewee may be accompanied by a colleague. Take contemporaneous notes. Notes are shared with the interviewee for confirmation within 5 business days.

Standard of proof

Findings are made on the balance of probabilities, meaning more likely than not. Record the evidence supporting each finding separately from the recommendation.

Timeline

Target completion is 30 calendar days from intake. Extensions beyond 45 days require approval from the Head of People Operations and a written explanation to both parties.

Outcome and records

The reporter is told the outcome in general terms only. Investigation files are retained for 7 years in the restricted case system and are not stored in the

employee file unless a sanction results.